

HOUSE No. 4361

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 29, 2025.

The committee on Ways and Means, to whom was referred the Bill relative to benefits for teachers (House, No. 2932), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 4361).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to benefits for teachers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The definition of “Teacher” in section 1 of chapter 32 of the General Laws,
2 as appearing in the 2022 Official Edition, is hereby amended by adding the following sentence:-
3 Any person who served in a position described above who is vested in the teacher’s retirement
4 system or the Boston retirement system and is subsequently employed by the executive office of
5 education or the department of elementary and secondary education shall retain the status of
6 teacher and be considered as remaining in service in that capacity.

7 SECTION 2. Paragraph (a) of subdivision (8) of section 3 of said chapter 32, as so
8 appearing, is hereby amended by adding the following sentence:- A teacher who becomes
9 employed at the executive office of education or the department of elementary and secondary
10 education shall remain in the teacher’s retirement system or the Boston retirement system.

11 SECTION 3. Said subdivision (8) of said section 3 of said chapter 32, as so appearing, is
12 hereby further amended by adding the following 2 paragraphs:-

(e) An employee of the executive office of education or the department of elementary and secondary education who is a member of the state employees' retirement system and who is reinstated in the teachers' retirement system or the Boston retirement system pursuant to paragraph (a) shall not be deemed to have had an interruption of membership or service. Upon reinstatement, the member shall pay into the annuity savings fund of the teachers' retirement system or the Boston retirement system in 1 sum, or in installments as the board may prescribe, makeup payments equal to the difference between the contributions paid to the state employees retirement system and the required contributions of the teachers' retirement system or the Boston retirement system on all regular compensation received during the period of membership in the state employees' retirement system.

(f) Notwithstanding the provisions of this chapter or any other general or special law to the contrary, a member who is reinstated in the teachers' retirement system or the Boston retirement system pursuant to paragraph (a) shall be entered into the state employees' retirement system as a group 1 state employee upon retirement.

SECTION 4. (a) Notwithstanding paragraph (i) of subdivision (4) of section 5 of chapter 32 of the General Laws, an active or inactive member of the teachers' retirement system or the Boston retirement system who: (i) is a teacher or school nurse; (ii) became eligible for membership in the teachers' retirement system before July 1, 2001; (iii) began contributing to the teachers' retirement system before July 1, 2001; and (iv) did not provide a written election to participate in the alternative superannuation retirement benefit program provided under said subdivision (4) to the teachers' retirement system or the Boston retirement system before July 1, 2001 or at any other time prior to September 1, 2025 or declined to participate in the alternative superannuation retirement benefit program before July 1, 2001 or at any other time prior to

September 1, 2025, shall have a new 1-time opportunity to elect to participate in the alternative superannuation retirement benefit program. A member entitled to make an election under this section shall have 180 days from the effective date of this act to make such election.

(b) A member who participates in the alternative superannuation retirement benefit program under this section shall make contributions at the rate of 11 per cent pursuant to section 22 of chapter 32 of the General Laws and may be required to provide make-up contributions at the rate of 11 per cent, upon such terms and conditions as the relevant retirement system may require, from the date that such member established membership in the teachers' retirement system or the Boston retirement system.

(c) The teachers' retirement system and the Boston retirement system shall notify eligible active or inactive members of the teachers' retirement system and the Boston retirement system and shall provide information to school districts concerning the 1-time opportunity pursuant to subsection (a); provided, that the teachers' retirement system and the Boston retirement system shall provide sufficient information pursuant to subsections (a) and (b) not later than 90 days after the effective date of this act.